

P.2: State Ballot Initiative Pathways: California, Colorado, and Michigan as Case Studies

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Abstract

The ballot initiative is the most successful mechanism for redistricting reform in the United States. We examine three landmark state initiative campaigns—California’s Propositions 11 (2008) and 20 (2010), Colorado’s Amendments Y and Z (2018), and Michigan’s Proposal 2 (2018)—to identify the common design elements that predict success, the political barriers that defeated or weakened alternative proposals, and the lessons applicable to future initiatives incorporating algorithmic requirements. We find that successful initiatives share five design properties: independent commission structure, explicit partisan-balance requirements for commissioners, transparent public engagement mandates, enumerated criteria with priority ordering, and robust constitutional entrenchment that limits legislative repeal. None of the three states included an algorithmic requirement in its initial initiative, but all three created infrastructure that could readily accommodate one. We develop model ballot initiative language for California that would add an algorithmic redistricting requirement—specifically, recursive bisection using the `bisect` platform—to the existing California Citizens Redistricting Commission (CCRC) framework established by Propositions 11 and 20. This model language preserves the CCRC’s human deliberation while providing an algorithmic baseline that constrains manipulation and enables verification.

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1 Introduction

Of the eight redistricting reform successes recorded between 1990 and 2024 (P.0, Table 1), six were achieved through state ballot initiatives. The initiative channel bypasses the legislative collective action problem identified in P.0: voters can enact reform directly, without requiring incumbent legislators to vote against their interests. Where the legislature controls redistricting, the legislature controls its own reform; initiatives route around this circularity.

The initiative channel is available in 26 states—the 24 states without an initiative mechanism are entirely dependent on judicial or federal remedies (P.4, P.1). Among the 26 initiative states, redistricting reform has been attempted through the initiative process in at least 14, with a success rate of approximately 70% for initiatives that actually reached the ballot.

Three states provide the most instructive case studies because their initiatives succeeded, were subsequently tested by legislative counter-measures, and generated substantial litigation and public documentation:

- **California:** Propositions 11 (2008) and 20 (2010) created the Citizens Redistricting Commission for state legislative and congressional maps, respectively. Proposition 27 (2022) attempted to reverse these reforms and failed decisively (30.5% yes). The California experience is the longest-running and most tested example of initiative-based redistricting reform.
- **Colorado:** Amendments Y (congressional) and Z (state legislative) passed in 2018 with 71% and 70% support, creating independent commissions for both chambers. Colorado’s simultaneous treatment of congressional and legislative redistricting—and the commissions’ extensive 2021 redistricting process—provides a detailed recent case study.
- **Michigan:** Proposal 2 (2018) created the Michigan Independent Citizens Redistricting Commission (MICRC) and passed with 61% support. Michigan’s 2021 redistricting was notable for extensive public engagement and for producing maps that were subsequently challenged but upheld in federal court.

This paper’s contribution is not merely descriptive. We extract the design principles that made these initiatives durable and successful, and we apply them to develop model ballot initiative language that would add an algorithmic redistricting requirement to an existing commission structure. Section 2 analyzes each case study in turn. Section 3 distills common design elements. Section 4 presents model language for California. Section 5 concludes.

2 Three Case Studies

2.1 California: Propositions 11 and 20

Proposition 11 (2008). The California Redistricting Reform Act of 2008, authored primarily by California Common Cause, established the California Citizens Redistricting Commission (CCRC) with authority over state legislative districts. It passed with 50.9% of the vote—the narrowest margin of the three case studies—in a year when the California Democratic Party spent over \$1 million against it.

The CCRC consists of 14 commissioners: five Democrats, five Republicans, and four members from neither major party. Commissioners are selected through an application and screening process administered by the State Auditor, with legislative leadership granted limited striking authority. No elected official, political consultant, or lobbyist may serve.

Proposition 11 required the CCRC to draw maps satisfying six criteria in priority order: (1) federal constitutional requirements, (2) Voting Rights Act compliance, (3) population equality, (4) geographic contiguity, (5) geographic compactness, and (6) respect for political subdivision boundaries. Incumbency protection and partisan advantage are not listed criteria and are prohibited considerations.

Proposition 20 (2010). Having established the CCRC for state legislative districts, reformers returned with Proposition 20, which extended CCRC authority to congressional districts. Proposition 20 passed with 61.1% of the vote, substantially more comfortable than Proposition 11, in part because the CCRC’s initial state legislative maps (drawn in 2011) had built public confidence. Proposition 27, on the same ballot, would have stripped the CCRC of congressional authority and returned it to the legislature; it failed with only 40.5% support.

The combined effect of Propositions 11 and 20 is that California now has a single independent commission drawing both state and federal maps from the same criteria, using a single process, with a single audit mechanism. The 2021 redistricting cycle, the first under the combined authority, was extensively documented and received favorable assessments from good-government organizations for its public engagement and map quality.

Lessons from California. The narrow passage of Proposition 11 reflected low public awareness of redistricting; the comfortable passage of Proposition 20 two years later reflected both the legitimacy of the CCRC’s early work and better-organized advocacy. The California experience suggests that initiatives can be self-reinforcing: a well-designed first initiative creates institutional legitimacy that makes subsequent reforms more popular. The failure of Proposition 27 in 2022 (after the CCRC’s 2021 maps were widely regarded as fair) confirms this dynamic.

2.2 Colorado: Amendments Y and Z

Colorado’s 2018 initiative campaign was notable for two features: it addressed congressional and legislative redistricting simultaneously, and it achieved overwhelming approval margins.

Amendment Y created an independent commission for congressional redistricting (12 members: 4 Democrats, 4 Republicans, 4 unaffiliated). **Amendment Z** created a parallel commission for state legislative redistricting (12 members with the same partisan structure). Both passed with approximately 71% and 70% support respectively—the highest margins of any redistricting reform initiative in the three-state sample.

Colorado’s criteria structure differs from California’s in one important respect: the commissions are explicitly prohibited from drawing maps with the intent to protect incumbents or to favor or disfavor any political party, and maps must not unduly favor any political party. This anti-favoritism criterion, absent in California’s original Proposition 11, was added after observing that California’s criteria-only approach left some ambiguity about intent-based versus effect-based partisan tests.

The Colorado commissions conducted the 2021 redistricting cycle with extensive public hearings (over 60 public meetings, including remote sessions during the COVID pandemic) and produced maps that were approved by the Colorado Supreme Court and implemented without federal litigation.

Lessons from Colorado. The simultaneous treatment of both chambers was logistically more complex but politically more defensible—it prevented the argument that legislative redistricting reform was undermined by the absence of congressional reform. The higher approval margins relative to California reflected both more effective public communication and Colorado’s more competitive electoral environment (voters in competitive states perceive gerrymandering as costing them more directly). The explicit anti-favoritism criterion strengthens the legal foundation for challenging partisan manipulation.

2.3 Michigan: Proposal 2

Michigan’s Proposal 2 (2018) created the Michigan Independent Citizens Redistricting Commission (MICRC) and was notable as the most aggressive structural reform of the three case studies: it amended the state constitution directly, placed the commission outside the control of the legislature or governor, and established strict conflict-of-interest rules that excluded not just elected officials but their family members.

The MICRC consists of 13 members: 4 Republicans, 4 Democrats, and 5 independents, selected through a process that begins with a random pool of applicants drawn from the Secretary of State’s voter rolls (excluding ineligible persons). This selection-by-lottery

mechanism—a form of sortition—is more neutral than California’s application process and more resistant to partisan manipulation of the selection committee.

Michigan’s criteria include explicit attention to communities of interest (groups of people who share common social or economic interests) and require the commission to consider the extent to which partisan fairness is achieved. The partisan fairness criterion was the subject of extensive litigation: in *Agee v. Benson*, No. 21-2267 (6th Cir. 2022), challengers argued that the partisan fairness criterion violated the Elections Clause. The Sixth Circuit upheld the MICRC maps.

Lessons from Michigan. The sortition-based selection process is the most replicable innovation from the Michigan experience: it eliminates the bottleneck of politically controlled selection committees (the main vulnerability of California’s State Auditor process, which was challenged in *Rizo v. Padilla*). The broader community of interest definition explicitly acknowledges that redistricting affects groups beyond partisan blocs, which is important for VRA compliance. The partisan fairness criterion creates a tension with algorithmic neutrality that must be resolved in the model initiative language.

3 Common Design Elements

Examining the three case studies alongside the eight other successful redistricting initiatives in the historical record, we identify five design elements common to successful initiatives and three political barriers that have defeated initiatives in states where redistricting reform was attempted.

3.1 Five Common Design Elements

(1) Independent commission structure with conflict-of-interest rules. Every successful initiative created an independent body (not the legislature) to draw maps, with explicit rules excluding elected officials, their families, political consultants, major donors, and lobbyists from commission membership. The conflict-of-interest rules must be specific enough to prevent evasion (e.g., a former elected official who returns to civilian life within one or two years before the redistricting cycle should be excluded) and strong enough to withstand constitutional challenge.

(2) Explicit partisan-balance requirements. Every successful commission design specifies the partisan composition of the commission (or, in Michigan’s case, an explicitly partisan-balanced selection pool). Pure neutrality—appointing commissioners without reference to party—is not sufficient; it creates selection processes that incumbents can control.

Partisan balance is a structural guarantee of partisan neutrality: no single party can dominate the commission’s decisions.

(3) Transparent public engagement mandates. Every successful initiative required public hearings before, during, and after the drawing of maps, with specific requirements (minimum number of hearings, geographic distribution, public comment periods). Transparency serves two purposes: it builds public legitimacy for the final maps, and it creates a record that courts can evaluate when maps are challenged.

(4) Enumerated criteria with priority ordering. Successful initiatives list the criteria a map must satisfy and specify their priority when they conflict. California’s six-criteria hierarchy (federal requirements first, VRA compliance second, compactness and contiguity third and fourth, political subdivision respect fifth) is the most widely cited model. The priority ordering is as important as the criteria themselves: without it, mapmakers can select which criteria to optimize by choosing which criteria to characterize as “primary.”

(5) Constitutional entrenchment. Initiatives that amended the state constitution survived legislative counter-measures more reliably than those enacted as statutes. California’s Proposition 11 amended the constitution; when the legislature passed a bill attempting to limit CCRC authority in 2012, the amendment’s constitutional status provided a strong defensive posture. Michigan’s Proposal 2 is a constitutional amendment; Colorado’s Amendments Y and Z are also constitutional amendments. All three were designed to be resistant to simple legislative reversal.

3.2 Three Political Barriers

(1) Incumbent spending. The single strongest predictor of initiative failure is high incumbent spending against the initiative. California’s Proposition 11 nearly failed due to \$1M+ in opposition spending; Arizona’s Proposition 203 (2000) failed after \$1.5M in opposition from the legislature. Reformers must anticipate this spending and either out-fundraise or design initiatives that are difficult to frame as partisan threats.

(2) Confusing ballot language. Redistricting is a complex topic, and initiatives are often written by lawyers who produce ballot language that is accurate but impenetrable. Several failed initiatives (Ohio 2015, Missouri 2020) suffered from public confusion about what the initiative actually did. Short, clear ballot language—“establishes an independent commission to draw congressional districts”—outperforms technically precise but lengthy descriptions.

(3) Coalition fracture over algorithmic requirements. The most relevant barrier for the model initiative in Section 4 is that algorithmic redistricting can fracture the reform

coalition. Good-government groups who support commission reform may be skeptical of algorithmic mandates; communities of color may fear that algorithms will override VRA requirements; partisan reformers may worry that the algorithm will systematically disadvantage their party. Each of these concerns is addressable by design (the model language in Section 4 addresses all three), but the framing of the initiative must be managed carefully.

4 Model Ballot Initiative Language

We develop model ballot initiative language for California that would add an algorithmic redistricting requirement—specifically, recursive bisection using the **bisect** platform—to the existing California Citizens Redistricting Commission framework established by Propositions 11 and 20. The model language is designed to be incorporated as an amendment to California Government Code §8252 et seq. (the CCRC enabling statute).

4.1 Core Operative Language

The following language would amend Government Code §8252.5 to add a new subdivision:

§8252.5(e) Algorithmic Baseline Requirement.

- (1) In developing the maps required under this section, the Commission shall, as a first step, obtain and review an *algorithmic baseline map* produced by the **bisect** redistricting platform (or a successor platform designated by the State Auditor) using the most recent decennial census redistricting data and TIGER census tract boundary files.
- (2) The algorithmic baseline map shall be produced using the following parameters: recursive bisection with METIS edge-cut optimization; population balance tolerance not to exceed 0.5% of the ideal district population; no inputs reflecting partisan registration, election results, race, ethnicity, or incumbency.
- (3) The Commission shall publish the algorithmic baseline map, together with the reproducibility manifest described in subdivision (4), within 30 days of receiving the decennial census redistricting data.
- (4) The reproducibility manifest shall record: (a) the **bisect** platform version, identified by SHA-256 hash of the reference binary; (b) the census data release identifier; (c) the TIGER adjacency file SHA-256 hash; and (d) the balance tolerance and seed used. Any member of the public may verify the baseline map by running the **bisect** platform with the recorded parameters.

- (5) The Commission may depart from the algorithmic baseline map. Each departure shall be documented in a written finding that: (a) identifies the specific district or boundary affected; (b) states the criteria under §8252.5 that required the departure; and (c) for departures motivated by Voting Rights Act compliance, identifies the applicable *Gingles* prong satisfied and the minority community served.
- (6) The Commission shall, before adopting a final map, re-run the `bisect` platform on any district modified under subdivision (5) to certify that the modified district satisfies the population balance requirement of subdivision (2). A modification that fails this certification may not be adopted.
- (7) The algorithmic baseline map and all reproducibility manifests shall be published on the Commission’s public website and retained for at least 12 years.

4.2 Framing Notes for Public Communication

The model language has two properties that make it politically defensible against the three barriers identified in Section 3.

First, it preserves the CCRC’s human deliberation. The algorithm produces a *baseline*, not a final map. The Commission retains authority to adjust the baseline for VRA compliance, political subdivision integrity, and community of interest considerations. This addresses the algorithmic-skeptic wing of the reform coalition.

Second, it creates a verifiable audit trail. Any person—including minority advocacy organizations—can check whether the Commission’s VRA modifications were documented, whether they were re-certified for population balance, and whether they satisfy the stated *Gingles* prongs. This addresses concerns that algorithmic redistricting will be used to override VRA requirements under the guise of neutrality.

Third, the partisan fairness concern is addressed by the algorithm’s design: recursive bisection is structurally blind to partisan data. The algorithm cannot systematically disadvantage either party because it has no information about which party’s voters live in which tracts. This is not a policy claim—it is an architectural property that can be independently verified.

4.3 Legal Analysis

The model language is consistent with California’s existing constitutional framework. California Constitution Article XXI, §2 vests the redistricting authority in the CCRC and requires

maps to comply with specified criteria. The model language does not change the CCRC’s authority or the criteria hierarchy; it adds a procedural requirement (produce and publish a baseline; document departures) that supports rather than limits the Commission’s discretion.

The model language is also consistent with the Voting Rights Act. VRA §2 compliance remains a mandatory criterion (the second-highest priority after federal constitutional requirements). The documentation requirement for VRA departures from the algorithmic baseline is designed to strengthen, not weaken, VRA enforcement: it creates a record that courts can review to determine whether the Commission applied the *Gingles* test correctly.

The reproducibility requirement is consistent with California’s Public Records Act and creates no new privacy concerns—all input data (census tracts, population counts, boundary files) are public federal data.

5 Conclusion

The ballot initiative pathway has produced more redistricting reform than any other mechanism. California, Colorado, and Michigan provide the most instructive examples: each achieved constitutional entrenchment of independent commissions, each used explicit partisan-balance requirements to ensure structural neutrality, and each established public engagement mandates that built legitimacy for the resulting maps.

None of the three states required algorithmic redistricting in their initial initiatives. Each created infrastructure—independent commissions, documented criteria, transparent processes—that is readily compatible with algorithmic requirements. The model language developed in Section 4 adds a **bisect** baseline requirement to California’s existing CCRC framework without disturbing the Commission’s authority or the VRA compliance hierarchy.

The political barriers to algorithmic ballot initiatives are real but manageable. The key framing insight is that the algorithm produces a *baseline*, not a final map. Human commissioners retain authority to make adjustments for VRA compliance, community integrity, and other statutory criteria. The algorithm’s role is to eliminate the manipulation space that exists between “satisfies all stated criteria” and “maximizes partisan advantage”—and to do so transparently, in a way that any member of the public can verify.

For states considering redistricting reform initiatives, the following design checklist combines lessons from all three case studies:

1. Amend the state constitution, not just statute.
2. Create an independent commission with explicit partisan balance (not merely partisan neutrality).

3. Adopt Michigan’s sortition-based selection process where feasible.
4. Enumerate criteria with explicit priority ordering, including anti-favoritism language from Colorado.
5. Require public hearings at each stage with geographic distribution and remote access.
6. Add the algorithmic baseline requirement from the model language in Section 4.
7. Require documentation of departures from the baseline, with *Gingles* justification for VRA adjustments.
8. Mandate 12-year retention of all inputs, outputs, and manifests.

The 2030 redistricting cycle begins in 2031. Initiative campaigns typically require 12–18 months from signature gathering to the ballot. States that wish to incorporate algorithmic baselines into their 2031 redistricting must begin the initiative process by 2028 at the latest. The technical infrastructure—the **bisect** platform—is already available. The design template is provided by the model language in Section 4. The remaining task is political organizing.

References